

Easement

Version 3.3 released on 6/29/23

PNC121211



CITY COUNCIL USE ONLY		CITY CLERK USE ONLY	
Date Received:	Tracking #:	☐ Scanned	Date: 09.10.2025
Committee Date:	Committee:	☐ Posted	Item #: 2509.02338
1st Agenda Date:	Hearing Date:		
	2nd Agenda Date:		

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details

Board Approval		Other Board Name	City Council Approval
			☒ Yes ☐ No
Department	Contact Name	Email	Phone
Public Works	Michelle L. Lester 3/18/25	mlester@cityoftulsa.org	918-596-7262
Easement Type	Owner-Grantor		
Sanitary Sewer	Raines Bros. Ranch, LLC		
Bid/Project Number	Project Title	Council District	
ES 2022-15	Spunky Creek East Branch C1	6	
Section	Township	Range	Addition
6	19	15	UNPLATTED
Lot	Block	Address	
		Wagoner County	
Parcel Number	Additional Information/Tracking Number		
1A			

Budget

Contract Types	Funding Source(s)	
☐ No Payments Involved	2131S00004.SewerLines.Sewer.7500N.75003308.541101:	\$28.00
☐ Revenue Contracts	TOTAL:	\$28.00
☒ Expense Contracts		

Approvals

Department:	Date: 4/2/2025
Legal:	Date: 09/04/2025
Board:	Date: SEP 10 2025
Mayor:	Date:
Other:	Date:

Policy Statement

Background Information

Project ES 2022-15 - Spunky Creek East Branch C1, Parcel 1A

The City of Tulsa is planning a sanitary sewer project in the vicinity of the East 11th Street and the Creek Turnpike in Wagoner County. The attached Sanitary Sewer Easement is required for the project. This easement is being donated by Raines Bros.Ranch, L.L.C.

Payment request is attached to the Wagoner County Clerk for the filing fee (\$28.00).

PDZ: 2025-01-25 MSL: 2025-01-25 bh

Summation of the Requested Action

Mayoral approval and City Council acceptance.

Other Pertinent Details

Processing Information for City Clerk's Office

Post Execution Processing	Additional Routing, Processing or Contact Details
☐ Mail vendor copy (add'l signature copies attached)	Courtney Jones, 6-9549
☒ Must be filed with other governmental entity	
☐ Add'l governmental entity approval(s) required	

2025-RFZ-0188

SANITARY SEWER EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **Raines Bros. Ranch, LLC, an Oklahoma limited liability company**, (Grantor), the owner of the legal and equitable title to the following real estate situated in Wagoner County, State of Oklahoma, for and in consideration of the sum of One Dollar (\$1.00) from the City of Tulsa, Oklahoma, a municipal corporation (City), and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City of Tulsa, Oklahoma, a permanent easement through, over, under and across the following described property, situated in said County, to-wit:

See Exhibit "A"

for the purpose of permitting the City to construct a **sanitary sewer** thereon, through, over, under and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same, and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantor, for itself and administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor, or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantor, its administrators, successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 28 day of February, 2025.

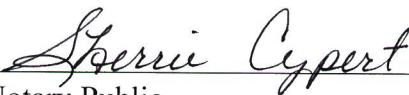
Raines Bros. Ranch, LLC
an Oklahoma limited liability company,

By: 
Name: Michael A. Raines, Manager

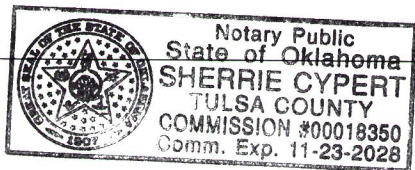
STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

This instrument was acknowledged before me on this 28 day of February, 2025,
by **Michael A. Raines, Manager**, Raines Bros. Ranch, LLC, an Oklahoma limited liability company.

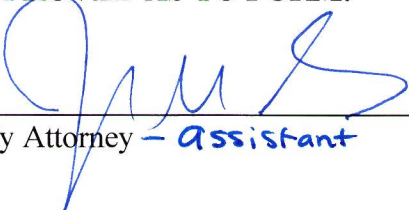
Given under my hand and seal of office the day and year last above written.


Notary Public

My commission expires: 11-23-2028



APPROVED AS TO FORM:



City Attorney - Assistant

APPROVED AS TO SUBSTANCE:



Director

ACCEPTED BY CITY COUNCIL:

Date: _____

BY: _____

Name: Phil Lakin, Jr.

Title: Chairman

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2025, personally appeared **Phil Lakin, Jr.**, to me known to be the identical person who accepted the within and foregoing instrument as **Chairman** of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he accepted the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City Council of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

APPROVED BY MAYOR:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____

Name: Monroe Nichols IV

Title: Mayor

ATTEST:

City Clerk

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the ____ day of _____, 2025, personally appeared **Monroe Nichols IV**, to me known to be the identical person who approved the within and foregoing instrument as **Mayor** of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

PARCEL NO. _____ 1A
 COUNTY _____ WAGONER

LEGAL DESCRIPTION

RAINES BROS. RANCH LLC
 PERMANENT EASEMENT

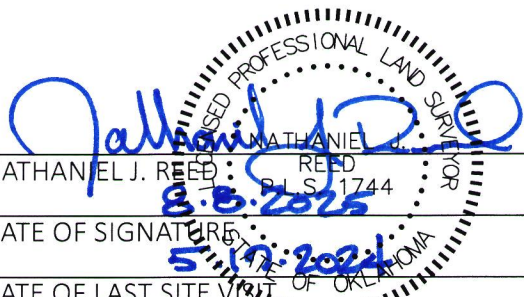
A TRACT LAND LOCATED IN THE SOUTHEAST QUARTER (SE/4), SECTION SIX (6), TOWNSHIP NINETEEN (19) NORTH, RANGE 15 EAST OF THE INDIAN BASE AND MERIDIAN, WAGONER COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

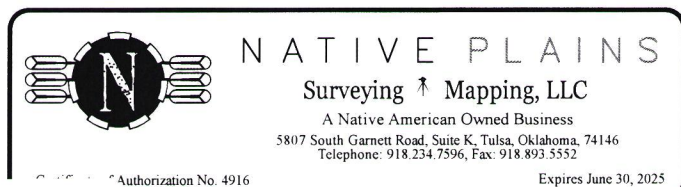
COMMENCING AT THE SOUTHEAST CORNER OF SAID SE/4; THENCE SOUTH 88°25'55" WEST AND ALONG THE SOUTH LINE OF SAID SE/4, FOR A DISTANCE OF 202.62 FEET TO THE **POINT OF BEGINNING**; THENCE CONTINUING SOUTH 88°25'55" WEST AND ALONG SAID SOUTH LINE, FOR A DISTANCE OF 50.34 FEET; THENCE NORTH 08°12'55" WEST, FOR A DISTANCE OF 278.95 FEET; THENCE NORTH 00°03'08" EAST, FOR A DISTANCE OF 484.59 FEET; THENCE NORTH 80°51'55" WEST, FOR A DISTANCE OF 156.80 FEET; THENCE NORTH 01°41'14" WEST, FOR A DISTANCE OF 440.56 FEET; THENCE NORTH 25°07'39" WEST, FOR A DISTANCE OF 25.41 FEET; THENCE NORTH 57°42'56" EAST, FOR A DISTANCE OF 50.39 FEET; THENCE SOUTH 25°07'39" EAST, FOR A DISTANCE OF 42.06 FEET; THENCE SOUTH 01°41'14" EAST, FOR A DISTANCE OF 409.59 FEET; THENCE SOUTH 80°51'55" EAST, FOR A DISTANCE OF 158.10 FEET; THENCE SOUTH 00°03'08" WEST, FOR A DISTANCE OF 523.62 FEET, THENCE SOUTH 08°12'55" EAST, FOR A DISTANCE OF 281.17 FEET TO THE **POINT OF BEGINNING**. CONTAINING 70,021.50 SQUARE FEET OR 1.61 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

REAL PROPERTY CERTIFICATION:

I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.


 NATHANIEL J. REED
 DATE OF SIGNATURE 8-6-2025
 DATE OF LAST SITE VISIT 5-17-2024



[Handwritten signature]

JMS

SHEET 2 OF 2

EAST ARCHER STREET/I-44

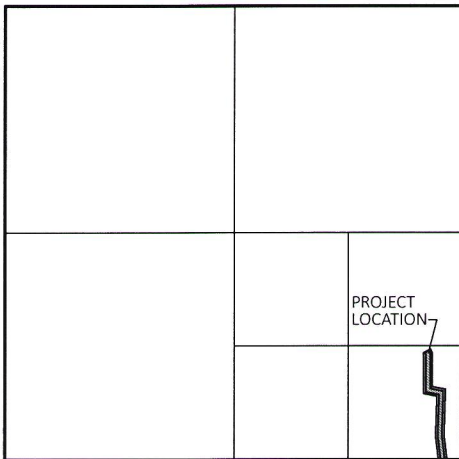
PLAT OF SURVEY

PARCEL NO. _____ 1A

RAINES BROS. RANCH LLC
PERMANENT EASEMENT

COUNTY _____ WAGONER

SOUTH 193rd EAST AVENUE



SOUTH 209th EAST AVENUE

EAST 11th STREET SOUTH

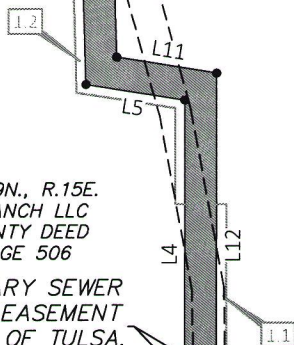
LEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE SE/4 OF SECTION 6, TOWNSHIP 19 NORTH,
RANGE 15 EAST, WAGONER COUNTY, STATE OF
OKLAHOMA

SEC 6 T 19 N R 15 E

TEMPORARY EASEMENT	0.00	SF	0.00	ACRES
PERMANENT EASEMENT	70,021.50	SF	1.61	ACRES

SANITARY SEWER AND
ACCESS EASEMENT TO CITY
OF TULSA, BOOK 1877,
PAGES 658-665

L7 L8 L9



SE/4 SEC. 6, T.19N., R.15E.
RAINES BROS. RANCH LLC
GENERAL WARRANTY DEED
BOOK 2123, PAGE 506

SANITARY SEWER
AND ACCESS EASEMENT
TO CITY OF TULSA,
BOOK 1877, PAGES 658-665

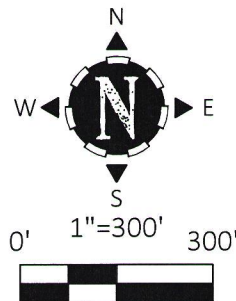
20' WATER EASEMENT TO
THE CITY OF WAGONER,
BOOK 1397, PAGE 194

SOUTH LINE SE/4
SEC. 6, T.19N., R.15E.

LEGEND

- POB POINT OF BEGINNING
- POC POINT OF COMMENCEMENT
- 3/8" IRON PIN SET w/CAP (#4916)

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE
COORDINATE SYSTEM, NORTH ZONE (3501' MAG. 22' 1002)



LINE	BEARING	DISTANCE
L1	S 88°25'55" W	202.62'
L2	S 88°25'55" W	50.34'
L3	N 08°12'55" W	278.95'
L4	N 00°03'08" E	484.59'
L5	N 80°51'55" W	156.80'
L6	N 01°41'14" W	440.56'
L7	N 25°07'39" W	25.41'
L8	N 57°42'56" E	50.39'
L9	S 25°07'39" E	42.06'
L10	S 01°41'14" E	409.59'
L11	S 80°51'55" E	158.10'
L12	S 00°03'08" W	523.62'
L13	S 08°12'55" E	281.17'

I, NATHANIEL J. REED OF THE STATE OF OKLAHOMA, AND A
PROFESSIONAL SURVEYOR, DO HEREBY CERTIFY THAT THE
ABOVE SHOWN PLAT OF SURVEY IS TRUE AND CORRECT TO
THE BEST OF MY KNOWLEDGE AND MEETS THE MINIMUM
TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE
OF OKLAHOMA.

POC
SE CORNER SE/4
SEC. 6, T.19N., R.15E.

NATHANIEL J. REED, P.L.S. 1744

DATE OF SIGNATURE

E OF LAST SITE VISIT

MUNIS for ES 2022-15

As of 3/12/2025

Project string

	Project *	2131S00004	Spunky Creek MS Interceptor S - C1
	Phase *	SewerLines	Sewer lines
	Task *	Sewer	Sewer projects
	Sub-Task *	7500N	TMUA Sewer Capital Projects

Name * Spunky Creek MS Interceptor S

Short Name * Spunky Crk

Status Active

Projected date range 03/24/2021 to 03/24/2025

Actual date range to

Project String Balances

GL Accounts



Project Year 2025

Original Budget	.00	{
Transfers - In	170,862.86	{
Transfers - Out	-862.81	{
Revised Budget	982,373.88	
Actual (Memo)	42,086.24	{
Encumbrances	104,598.73	{
SOY Encumbrances	.00	
Requisitions	.00	{
Inception to SOY	493,030.92	
Available	342,657.99	
Percent Used	65.12	

Default GL account

Fund SubFund

Org Object

75003308 541101

MUNIS

INVOICE COVER SHEET

Vendor Name and Address

Wagoner County Clerk

Department #: 32- Public Works**Date: 3/12/2025****Special Handling**☐ Wire Transfer☒ Will Pick up

Email: PWAdmin@cityoftulsa.org

ACCOUNTS PAYABLE USE

Allocation code: _____

MUNIS VENDOR NUMBER

2154-2

MUNIS CONTRACT #**PROJECT STRING** (if applicable)**ORG****OBJECT****AMOUNT**

2131S00004.SewerLines.Sewer.7500N

75003308

541101

\$28.00

\$0.00

\$0.00

INVOICE NUMBER/DESCRIPTION

Filing Fees

Project ES 2022-15

Parcel 1A

REMARKS**Purchase Authority**☐

Special Approval

☐

Exception

☐

Contract

Invoice☐

Original Attached

☐

Prepay (Attach form)

☐

Refund

Affidavit☒Affidavit attached (form TUL-373)
For invoices over \$25,000☐

Not applicable

Prepared by: Bruce Hutton

Munis Workflow approval Erica C Davis

Date: 3/12/2025

8/28/25